



File No.: EXP202213002

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by SYMLOGIC SL (hereinafter, the appellant), against the resolution issued by the Director of the Spanish Agency for Data Protection, dated December 20, 2022, and based on the following:

FACTS

FIRST: On August 5, 2022, a complaint was received by this Spanish Agency for Data Protection (hereinafter, AEPD) filed by A.A.A. regarding the INSTITUTE OF WOMEN.

SECOND: On December 20, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the AEPD in file EXP202213002. The resolution was notified to the INSTITUTE OF WOMEN on December 20, 2022, as evidenced in the file.

THIRD: On January 16, 2023, the appellant filed a recourse for reconsideration against the resolution issued in file EXP202213002, expressing disagreement with the contested resolution.

FOURTH: On January 31, 2023, a request for rectification was notified, requiring proof of representation by any valid means in law that provides reliable evidence of its existence, within a maximum period of ten working days. It was also warned that if this defect was not rectified within the specified period and in accordance with the provisions of Article 68.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), it would be considered that the appellant withdrew their request.

FIFTH: On February 6, 2023, the appellant submitted documentation proving that they are the Data Protection Officer of the INSTITUTE OF WOMEN.

The following legal grounds apply to the aforementioned facts:

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Requirements for Representation

According to the provisions of Article 5 of the LPACAP, titled "Representation":

- "1. Interested parties with legal capacity may act through a representative, understanding that administrative actions are conducted with them, unless expressly stated otherwise by the interested party.
2. Natural persons with legal capacity and legal entities, provided that this is provided for in their Statutes, may act on behalf of others before Public Administrations.
3. To submit requests, present responsible declarations or communications, file appeals, withdraw actions, and waive rights on behalf of another person, representation must be accredited. For acts and procedures of mere processing, such representation will be presumed.
4. Representation may be accredited by any valid means in law that provides reliable evidence of its existence. For these purposes, representation will be considered accredited through a power of attorney apud acta made by personal appearance or electronic appearance in the corresponding electronic headquarters, or through the accreditation of its registration in the electronic power of attorney registry of the competent Public Administration.
5. The competent body for processing the procedure must incorporate into the administrative file

evidence of the representative's status and the powers recognized at that moment. The electronic document that certifies the result of the consultation to the corresponding electronic power of attorney registry will serve as accreditation for these purposes.

6. The lack or insufficient accreditation of representation will not prevent the act in question from being considered performed, provided that such accreditation is submitted or the defect is rectified within the ten-day period that the administrative body must grant for this purpose, or a longer period when the circumstances of the case so require. (...)"

III

Requirements for the Resolution in Case of Withdrawal

On the other hand, Article 68.1 of the LPACAP, which regulates "Rectification and Improvement of the Request," stipulates the following:

3/5

"1. If the initiation request does not meet the requirements set forth in Article 66, and, where applicable, those set forth in Article 67 or other requirements established by the specific applicable legislation, the interested party will be required to remedy the deficiency or provide the necessary documents within a period of ten days, indicating that if they fail to do so, they will be considered to have withdrawn their request, following a resolution that must be issued in the terms provided in Article 21."

In accordance with the provisions of Article 21.1 of the LPACAP, in the case of withdrawal of the request, the resolution will consist of the declaration of the circumstance that occurs, with an indication of the facts produced and the applicable norms.

"1. The Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their form of initiation.

In cases of prescription, waiver of the right, expiration of the procedure, or withdrawal of the request, as well as the unforeseen disappearance of the object of the procedure, the resolution will consist of the declaration of the circumstance that occurs in each case, with an indication of the facts produced and the applicable norms. (...)"

IV

Lack of accreditation of representation

SYMLOGIC, S.L. presents documentation that certifies its designation as Data Protection Officer (DPO) of the INSTITUTO DE LAS MUJERES, stating that in accordance with Article 39.1, paragraph e), of Regulation (EU) 2016/679, one of the functions of the Data Protection Officer is to act as a point of contact for the supervisory authority and requesting that its representation in its capacity as DPO be considered sufficiently accredited.

In this regard, it should be noted that since accreditation of representation is necessary for the filing of appeals, as stipulated in Article 5 of the LPACAP previously transcribed, such representation must be subject to the general rules of common law and must be duly accredited through a valid legal title, with the INSTITUTO DE LAS MUJERES having to send a formal communication in which the intention to confer its representation to SYMLOGIC SL is made clear, not presuming the condition of DPO to imply such representation.

V

Termination of the procedure

Article 84 of the LPACAP includes withdrawal as a means of terminating the procedure, in accordance with the provisions of Articles 93 and 94 of the same law.

"The procedure will be concluded by resolution, withdrawal, waiver of the right on which the request is based, when such waiver is not prohibited by the legal system, and the declaration of expiration."

For these purposes, Article 94 of the LPACAP provides the following:

C/ Jorge Juan, 6

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4/5

- “1. Any interested party may withdraw their application or, when not prohibited by the legal system, waive their rights.
2. If the initiation document was submitted by two or more interested parties, the withdrawal or waiver will only affect those who submitted it.
3. Both the withdrawal and the waiver may be made by any means that allows for their documentation, provided that it includes the corresponding signatures in accordance with the applicable regulations.
4. The Administration will accept the withdrawal or waiver outright and will declare the procedure concluded unless, having third interested parties involved, they request its continuation within ten days from when they were notified of the withdrawal or waiver.
5. If the issue raised by the initiation of the procedure involves general interest or it is deemed appropriate to process it for its definition and clarification, the Administration may limit the effects of the withdrawal or waiver to the interested party and will continue the procedure.”

It is noted, however, that on December 27, 2022, SYMLOGIC SL submitted a document in the same terms as the appeal filed, requesting clarification on the reasons why the resolution has a different file number from the previous proceedings, as well as the reasons why the resolution indicates that no response has been given to the interested party nor the requirements of the Agency have been addressed.

Regarding the change of the file number, it should be noted that the proceedings processed under reference EXP202208729 are included within file EXP202213002. The actions taken under reference EXP202208729 are framed within the evaluation phase of the admission of the claim, as provided in Article 65 of the LOPDGDD.

On the other hand, it is in file EXP202213002 where the resolution has been issued which upholds the claim made by A.A.A. and instructs the INSTITUTO DE LAS MUJERES to send the claimant a certification addressing the exercised right of suppression or to deny it with justification indicating the reasons why the request cannot be granted.

Regarding the clarification of the reason why the resolution indicates that no response has been given to the interested party nor the requirements of this Agency have been addressed, it should be noted that after analyzing the documents submitted on September 15 and 16, 2022, by the responding party and as stated in the admission of the claim dated September 26, 2022, the right could not be considered addressed because the publication remained accessible with the personal data of the claimant, nor had the justification for the option of pixelation of the image against the suppression requested by the claimant been adequately provided.

On October 7, 2022, the responding party submitted a document of allegations in which they did not provide justification for the submission to the claimant of having addressed the exercised right of suppression.

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5/5

Having submitted on December 27, 2022, a document in which they justify to this Agency the submission to the claimant of the attention to the requested right, the resolution of the reference file is considered fulfilled.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO CONSIDER SYMLOGIC SL WITHDRAWN regarding the optional appeal for reinstatement filed against the resolution issued in file EXP202213002.

SECOND: TO DECLARE THE PROCEDURE relating to the optional appeal for reinstatement filed as CONCLUDED.

THIRD: TO NOTIFY this resolution to SYMLOGIC SL.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of the aforementioned Law.

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Mar España Martí

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